

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Eric Murdy	Team: Squad #06	CCRB Case #: 201504565	☒ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Sunday, 05/10/2015 4:30 AM	Location of Incident: Broadway and West 218th Street	18 Mo. SOL 11/10/2016	Precinct: 34
Date/Time CV Reported Fri, 06/05/2015 11:00 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 06/05/2015 11:00 AM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Joseph Ierna	08613	950612	034 PCT
2. POM William Beattie	02878	938046	034 PCT
3. Officers			034 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Gerard Staples	24526	953443	034 PCT

Officer(s)	Allegation	Investigator Recommendation
A . Officers	Abuse: Officers stopped the car in which § 87(2)(b) and § 87(2)(b) were occupants.	A . Exonerated
B . Officers	Force: Officers pointed their guns at § 87(2)(b) and § 87(2)(b)	B . Exonerated
C . POM William Beattie	Discourtesy: PO William Beattie spoke discourteously to § 87(2)(b)	C . Exonerated
D . POM William Beattie	Abuse: PO William Beattie threatened § 87(2)(b) with the use of force.	D . Unsubstantiated
E . POM Joseph Ierna	Abuse: PO Joseph Ierna searched the car in which § 87(2)(b) was an occupant.	E . Exonerated

Case Summary

On June 5, 2015, § 87(2)(b) filed this complaint by phone with the CCRB on behalf of herself, § 87(2)(b) and § 87(2)(b).

On May 10, 2015, at approximately 4 a.m., § 87(2)(b) was at Tette Lounge, located at 154 Post Avenue in Manhattan. Upon exiting the club and reaching her car at approximately 4:30 a.m., § 87(2)(b) heard a gunshot. Moments after, § 87(2)(b) and § 87(2)(b) arrived at the car and the four of them entered and drove away. § 87(2)(b) was the driver, § 87(2)(b) sat in the passenger's seat, § 87(2)(b) sat in the rear driver's side seat, and § 87(2)(b) sat in the rear passenger's side seat.

After driving for approximately one minute, § 87(2)(b) and her companions were pulled over by a patrol van, driven by PO Joesph Ierna and PO William Beattie, and two additional marked patrol cars (**Allegation A**). Suddenly, four uniformed officers, including PO Ierna and PO Beattie, approached the car from each corner with their guns pointed. All four officers yelled for everyone to get out of the car (**Allegation B**).

When § 87(2)(b) took too long to exit, PO William Beattie yelled at him to, "Get out of the fucking car" (**Allegation C**). PO Beattie then yelled, "Hurry up and get out before we blow your fucking head off" (**Allegation D**). All four occupants, including § 87(2)(b) exited the vehicle and were immediately handcuffed.. PO Ierna then searched § 87(2)(b)'s car (**Allegation E**).

After 15 minutes, § 87(2)(b) and § 87(2)(b) were all put into PO Ierna and PO Beattie's van and transported to the 34th Precinct. While there, she was notified that someone had been killed as a result of the shooting at the club. After 24 hours they were all released from custody with voided arrests (See Board Review 01).

Mediation, Civil, and Criminal Histories

As the only person who provided a sworn statement, § 87(2)(b) rejected mediation.

§ 87(2)(g)

On August 13, 2015, an email was received from the NYC Comptroller's Office stating that § 87(2)(b) has not filed a notice of claim (See Board Review 12). [§ 87(2)(b)] [§§ 86(1)(2)&(4)] [§ 87(2)(g)]

Civilian and Officer CCRB Histories

- This is § 87(2)(b)'s first CCRB complaint (See Board Review 07).
- This is § 87(2)(b)'s first CCRB complaint (See Board Review 14).
- PO Beattie has been a member of the NYPD for 10 years and has 12 prior CCRB allegations, one of which, a frisk allegation from case #200717508, was substantiated. He has one other open case, #201503103, with three allegations pleaded against him. § 87(2)(g)
- PO Joseph Ierna has been a member of the NYPD for four years and has no prior CCRB allegations against him. § 87(2)(g)

Subject Officer Identification

PO Beattie and PO Ierna stated they were the officers who initially pulled § 87(2)(b) over. Additionally, PO Ierna and PO Beattie confirmed that they had their guns pointed at § 87(2)(b) § 87(2)(b)'s car. However, they could not specifically recall any other officers who also participated in the car stop and may have had their guns pointed while on scene. § 87(2)(b) also could not provide names or detailed descriptions of the other officers who had their guns pointed at her car. § 87(2)(g)

§ 87(2)(b) stated that it was the officer who approached her car from the rear driver's side who told § 87(2)(b) "Get out of the fucking car. Hurry up and get out before we blow your fucking head off."

PO Beattie testified that he was the driver of the patrol van which pulled over § 87(2)(b) from behind. Once stopped, he exited the van and pointed his gun from behind his car door. After ordering everyone out of the car, he approached from behind and handcuffed § 87(2)(b) who had been sitting in the rear driver's side seat. § 87(2)(g)

PO Ierna admitted to searching § 87(2)(b)'s car. § 87(2)(g)

Video Footage

Video footage from the nearby MTA Kingsbridge Bus Depot was subpoenaed as the Field Team spotted cameras that could have contained video footage of the intersection where the car stop occurred. However, upon receipt of the footage, it only showed the intersection from a distance, mostly obscured by buses parked on the side of the street near the depot. No footage of the actual incident can be seen.

Allegations and Recommendations

Allegations Not Pleaded

- § 87(2)(g)

Allegation A- Abuse of Authority: Officers stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.

Allegation B – Abuse of Authority: Officers pointed their guns at § 87(2)(b) and § 87(2)(b)

It is undisputed that at approximately 4:30 a.m., on May 10, 2015, § 87(2)(b) and § 87(2)(b) were present in the immediate vicinity of a homicide in front of Tette Lounge, located at 154 Post Avenue in Manhattan. It is also undisputed that § 87(2)(b) and § 87(2)(b) left northbound from the club in § 87(2)(b)'s grey Infiniti G-37x immediately after the shooting and were pulled over by PO Ierna and PO Beattie approximately a minute later near the intersection of West 218th Street and Broadway. Upon executing the stop PO Beattie and PO Ierna pointed their guns at § 87(2)(b)'s car. Officers in the additional units who arrived seconds after PO Beattie and PO Ierna also pointed their guns at the car (See Board Review 01, 03, 06).

According to § 87(2)(b) she was already standing at her car when she heard a gunshot go off near Tette Lounge. Soon after, § 87(2)(b) and § 87(2)(b) arrived and the four left in § 87(2)(b)'s car. After driving for approximately a minute, the car was pulled over by two patrol cars and a patrol van (See Board Review 01).

In his CCRB testimony, PO Ierna stated that he and PO Beattie were driving southbound in their marked van on 10th Avenue, approximately 100 yards away from Tette Lounge, when they heard a single gunshot, followed by two more in quick succession, coming from the direction of the nightclub. The two officers immediately drove to the nightclub and were the first unit on scene. They came upon a male victim sitting in the back of the car. The victim had been shot in the chest and was bleeding out when the two officers jumped out of their van to check on him. The victim was surrounded by a group of friends who were very distraught. The group immediately pointed towards four individuals, one female and three males, getting into a silver Infiniti sedan approximately 10-15 feet away, and stated that they were the ones who shot their friend.

PO Ierna noticed one of the males wearing a Mets shirt and one witness confirmed the car contained the man in the Mets shirt. PO Ierna and PO Beattie immediately entered their van and engaged in pursuit of the Infiniti. PO Ierna never lost sight of the car and after a seven block pursuit, he and PO Beattie turned on their siren and pulled over the Infiniti. Upon stopping § 87(2)(b)'s car, PO Ierna and PO Beattie exited their van, took cover behind their doors, and pointed their firearms at the car. Some officers from the additional units that responded pointed their guns at the car as well, but PO Ierna could not recall the names of any of the officers who did so. PO Ierna and PO Beattie then ordered everyone out of § 87(2)(b)'s car and they were all handcuffed without incident. (See Board Review 03).

PO Beattie largely corroborated PO Ierna's statements, with the exception that they were at a nearby gas station when they heard the shots, they were second to arrive on scene, and there were actually 15 people yelling and pointing that the shooter was in § 87(2)(b)'s car. PO Beattie himself did not see the people get into the car, but did recall one woman specifically telling him that the shooter was in the car he and PO Ierna saw drive away (See Board Review 06).

There may be circumstances in which even full arrest for a chargeable crime would be reasonable, let alone mandated on a peace officer based on information spontaneously provided in a street incident by a single civilian bystander, People v. Arthurs, 24 N.Y.2d 688 (1st Dept., 1969) If the witness' emotional state and his or her temporal and physical proximity to the events related suggested that the witness is excited and speaking without the opportunity for reflection

and, therefore, fabrication, People v. Reyes, 308 A.D.2d 422 (1st Dept., 2003) (See Board Review 11).

The Department permits an officer broad discretion to display his weapon whenever he feels that his life or the life of another is endangered. The determination as to when that exercise of discretion rises to the level of misconduct must be made by assessing the reasonableness of the officer's actions in the totality of the surrounding circumstances, NYPD v. Gliner, Oath Index No. 955/00 (May 4, 2000) (See Board Review 09).

§ 87(2)(b) and § 87(2)(b) were present for the shooting and left the area in front of the club immediately after it occurred. PO Ierna and PO Beattie both stated that after hearing gunshots and arriving at the club, they came upon one of the shooting victims surrounded by multiple people pointing towards § 87(2)(b) and § 87(2)(b) stating that they were responsible. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

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§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegations A and B** be closed as *exonerated*.

Allegation C- Discourtesy: PO William Beattie spoke discourteously to § 87(2)(b)

It is undisputed that PO Beattie was the operator of the van containing himself and PO Ierna which pulled over § 87(2)(b)'s car from behind. As such, it is undisputed that PO Beattie would have been standing behind the rear driver's side of § 87(2)(b)'s car when he issued commands to the occupants.

The circumstances of a stressful street enforcement situation may preclude a police officer's use of profanity from being considered a disciplinary offense. NYPD v. Ebanks, Disciplinary Case No. 76079/00 (February 22, 2002.).

According to § 87(2)(b) delayed in exiting the car and the officer standing near the rear driver's side of her car (identified by the investigation as PO Beattie) yelled, "Get out of the fucking car!" (See Board Review 01).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegation C** be closed as *exonerated*.

Allegation D – Abuse of Authority: PO William Beattie threatened § 87(2)(b) with the use of force.

The investigation was not able to establish contact with § 87(2)(b) or § 87(2)(b)

§ 87(2)(b) alleged that after telling the individual sitting in the rear driver's side seat to "Get the fuck out of the car," PO Beattie also yelled, "Hurry up and get out before we blow your fucking head off!" (See Board Review 01)

In his phone statement, § 87(2)(b) did not allege any threat of force from an officer during the incident and admitted that his memory was not very good as he was really drunk on that night (See Board Review 13).

In his CCRB testimony, PO Beattie denied using the above phrase. PO Ierna and PO Staples, a witness officer, also denied hearing PO Beattie use any discourtesy or verbally threaten anyone with the use of force (See Board Review 02, 03, 06).

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegation D** be closed as *unsubstantiated*.

Allegation E – Abuse of Authority: PO Joseph Ierna searched the car in which § 87(2)(b) was an occupant.

It is undisputed that PO Joseph Ierna searched § 87(2)(b)'s car following her detainment at the scene of the car stop on Broadway and West 218th Street in Manhattan (See Board Review 01 and 03).

A valid arrest for a crime authorizes a warrantless search of a vehicle, and of any closed containers visible in the passenger compartment of the vehicle, in which the arrested person is travelling when the circumstances create a reasonable belief that the vehicle or its visible contents may be related to a crime or the commission thereof, People v. Yancy, 86 N.Y. 2d 239 (1st Dept. 1995).

After § 87(2)(b) and § 87(2)(b) were handcuffed and sat down on a curb, PO Ierna executed a search of § 87(2)(b)'s car by looking under the rear seats and in

the creased of the seats themselves. PO Ierna stated that the purpose of the search was to recover the firearm used in the nightclub shooting. No firearm was recovered.

The tour 1 command log for May 10, 2015, confirmed that they were considered under arrest, but eventually released on May 11, 2015, with voided arrests after it was determined that they were not actually responsible for the homicide (See Board Review 04). § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegation E** be closed as *exonerated*.

Pod:

Investigator: _____
Signature Print Date

Pod Leader: _____
Title/Signature Print Date

Attorney: _____
Title/Signature Print Date